

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JOSHEED W. CRAWFORD,

Plaintiff,

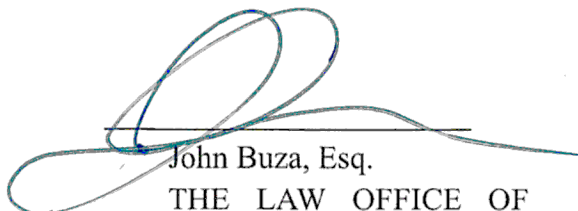
-against-

CITY OF NEW YORK; Police Officer CORY GREEN,
individually and in his/her official capacities; and, NYPD
Officers JOHN and JANE DOE 1 through 10, individually and
in their official capacities (the names John and Jane Doe being
fictitious, as the true names are presently unknown),Defendants.
-----X**SUMMONS**

Jury Trial Demanded

Plaintiff designates
New York County
as the place of trial.The basis
of venue
is: CPLR §
504(3)**To the above named Defendants:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
January 10, 2020
John Buza, Esq.
THE LAW OFFICE OF
JOHN BUZA, P.C.
233 Broadway, Ste. 900
York, New York 10279
212-349-2200

TO:

ZACHARY W. CARTER

Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW
YORK 100 Church Street
New York, New York 10007

Police Officer CORY GREEN, 73rd Precinct, 1470, East New York Avenue,

Brooklyn, NY 11212

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Defendants.
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**VERIFIED
COMPLAINT**

Jury Trial Demanded

Index No.:

**BASIS FOR VENUE:
CPLR § 504(3)**

Plaintiff JOSHEED W. CRAWFORD, by his attorney, the LAW OFFICE OF
JOHN BUZA, P.C. complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff JOSHEED W. CRAWFORD, is an African American male and has been at all relevant times a resident of County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times mentioned herein, Defendants P.O. CORY GREEN, and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.
5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
6. That each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.
7. That each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by Defendant THE CITY OF NEW YORK.

JURISDICTION AND VENUE

8. This action is brought pursuant to New York State Law, 42 U.S.C. Act of 1871, §§ 1983 and 1988, including its Eighth and Fourteenth Amendments to the Constitution of the United States.
9. Venue is proper in this county as the transactions and occurrences were in New York County.
10. Plaintiff has complied with all conditions precedent to this suit.

11. A Notice of Claim was timely filed, a 50-H hearing was held, and the claim has not yet been adjusted or paid.

JURY DEMAND

12. Plaintiff demands a trial by jury in this action.

STATEMENT OF FACTS

13. On or about February 14, 2018 at or around 9:20 p.m., Plaintiff JOSHEED W. CRAWFORD, was lawfully within the vicinity of 18 9th Avenue, New York, New York.
14. Several unidentified New York City Police Officers, including Defendant CORY GREEN, and the Doe Defendants violated Plaintiff JOSHEED W. CRAWFORD's rights, including the state and constitutional rights to be free from use of excessive force, *inter alia*.
15. The individual defendants unlawfully stopped and detained the plaintiff.
16. The individual defendants used excessive force, assaulted and battered the plaintiff.
17. The individual defendants were negligent in the execution of their duties, including their investigation of the incident.
18. The individual defendants fabricated and concealed evidence so as to avoid repercussions.
19. The City of New York, through its unconstitutional policies, negligent training, hiring and retention of its employees, deprived the plaintiff of his rights under state and federal law, and are otherwise liable under the theory of *respondeat superior*.

CLAIM ONE
UNLAWFUL STOP, SEARCH, AND SEIZURE

20. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

21. As a result of the aforesaid conduct by the defendants, the person of the plaintiff and his possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and the Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
FALSE ARREST/IMPRISONMENT

22. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

23. Defendant police officers arrested the plaintiff in the absence of a probable cause and without a valid warrant.

24. As a result of the aforesaid conduct by the defendants, Plaintiff JOSHEED W. CRAWFORD was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

25. As a result of the foregoing false imprisonment, Plaintiff JOSHEED W. CRAWFORD's liberty was restricted for an extended period of time, JOSHEED W. CRAWFORD was put in fear for his safety, was humiliated and subjected to handcuffing and other physical restraints.

26. Plaintiff JOSHEED W. CRAWFORD was conscious of said confinement and did not consent to same.

27. The confinement of Plaintiff JOSHEED W. CRAWFORD was without probable cause and was not otherwise privileged.

28. As a result of the aforementioned conduct, JOSHEED W. CRAWFORD has suffered physical and mental injuries together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM THREE
MALICIOUS ABUSE OF PROCESS

29. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

30. The individual defendants issued a legal process to place Plaintiff JOSHEED W. CRAWFORD under arrest.

31. The Municipal Defendants arrested Plaintiff JOSHEED W. CRAWFORD and lied in the subsequent investigation in order to obtain collateral objectives outside the legitimate ends of the legal process.

32. The Municipal Defendants acted with intent to do harm to JOSHEED W. CRAWFORD without excuse or justification.

33. As a direct and proximate result of this unlawful conduct, JOSHEED W. CRAWFORD sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
UNREASONABLE FORCE

34. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

35. The defendants violated the Fourth and the Fourteenth Amendments and the New York State Law because they used unreasonable, excessive, and unjustified force on Plaintiff JOSHEED W. CRAWFORD.

36. As a direct and proximate result of this unlawful conduct, Plaintiff JOSHEED W. CRAWFORD sustained the damages hereinbefore alleged.

CLAIM FIVE
FAILURE TO INTERVENE

37. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

38. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

39. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, and the Fourteenth Amendments.

40. As a direct and proximate result of this unlawful conduct, Plaintiff JOSHEED W. CRAWFORD sustained the damages hereinbefore alleged.

CLAIM SIX
ASSAULT AND BATTERY

41. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

42. Defendants' aforementioned actions placed Plaintiff JOSHEED W. CRAWFORD in apprehension of imminent harmful and offensive bodily contact.

43. Defendant police officers touched JOSHEED W. CRAWFORD in a harmful and offensive manner.

44. Defendants police officers did so without privilege or consent from JOSHEED W. CRAWFORD.

45. As a result of defendants' conduct, JOSHEED W. CRAWFORD has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM SEVEN
DEPRIVATION OF FEDERAL RIGHTS

46. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
47. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.
48. All of the aforementioned acts deprived JOSHEED W. CRAWFORD of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.
51. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM EIGHT
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

52. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

53. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.
54. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.
55. Due to the negligence of the defendants as set forth above, JOSHEED W. CRAWFORD suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

CLAIM NINE
MUNICIPAL LIABILITY

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.
57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
58. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - b. arresting innocent persons notwithstanding the existence of credible evidence, which exonerates the accused of any criminal wrongdoing;
 - c. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and

- d. fabricating evidence in connection with investigations of misconduct in order to avoid repercussions;

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff JOSHEED W. CRAWFORD.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JOSHEED W. CRAWFORD as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by JOSHEED W. CRAWFORD as alleged herein.

62. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff JOSHEED W. CRAWFORD's constitutional rights.

63. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff JOSHEED W. CRAWFORD constitutional rights.

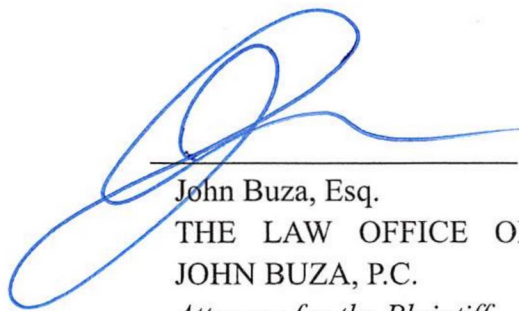
64. The acts complained of deprived the plaintiff of his rights:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. Not to have summary punishment imposed upon him; and
- d. To receive equal protection under the law.

WHEREFORE, Plaintiff respectfully request judgment against defendants as follows:

- a. an order awarding compensatory damages in an amount to be determined at trial;
- b. an order awarding punitive damages in an amount to be determined at trial;
- c. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- d. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
January 10, 2020



John Buza, Esq.
THE LAW OFFICE OF
JOHN BUZA, P.C.
Attorney for the Plaintiff
233 Broadway, Ste. 900
York, New York 10279
212-349-220

JOHN BUZA, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF JOHN BUZA, P.C. the attorney for JOSHEED W. CRAWFORD in the within entitled action.

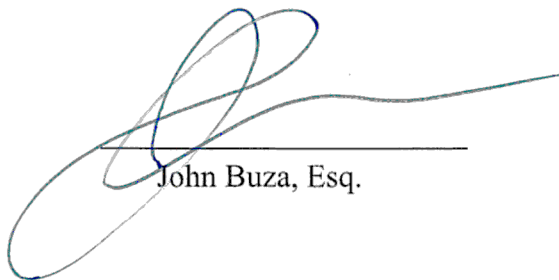
That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by the deponent and not by the Plaintiff is that the Plaintiff is not within the county wherein the deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
January 20, 2020



John Buza, Esq.